

Governance Framework for Linking Individual-level Health Data

Request Package Overview

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¹ OS-PCORTF Project Information: <https://aspe.hhs.gov/creating-new-data-research-environment>.

Introduction

A request package is a collection of information that an investigator/requesting institution compiles and submits as part of the Common Governance Process to request access to multiple datasets with the purpose of linking and use in a research study. The request package is a critical input to the Common Governance Process' Intake stage and is a primary information source for dataset holders to decide if their dataset will be accessed, linked, shared, and used in the proposed study.

Following an overview of the request package, this document describes how an investigator/requesting institution prepares for submission, information required by the request package, the steps for submitting the package, and considerations for successful request package submission.

The primary audience for this overview is the investigator/requesting institution engaging in the Common Governance Process to seek approval to access and link requested datasets for research. A secondary audience is dataset holders participating in the Common Governance Process and receiving Request Packages for review and decision.

Request Package Overview

1. What Is a Request Package?

A request package is an application for dataset access specific to the Common Governance Process. An investigator/requesting institution creates and submits a request package to apply for access to datasets for the purpose of linking for a specific research study. Through the request package submission, the investigator/requesting institution aims to initiate a request that begins the Common Governance Process and provides dataset holders with the information needed to decide whether the requested dataset(s) can be linked and accessed for use in a research study.

2. Why Is a Request Package Necessary?

While linking individual-level datasets unlocks the potential to advance scientific discoveries, the governance complexity surrounding linking datasets can delay or even derail research. Defining a common request package creates an entry point for a unified process to request access to multiple datasets and builds consensus on what information is required for dataset holders to make decisions about linkage. Currently, the investigator/requesting institution must go through a process to request access for each dataset they hope to link. This means completing multiple request forms and multiple governance processes in parallel, each with distinct requirements, approval procedures, and timelines. If a change to the study design or linkage implementation is required based on feedback from one dataset holder, that change must be replicated with other dataset holders through other processes already under consideration. Engaging in multiple independent request processes is inefficient and can delay obtaining access to the data that investigators need to conduct their research.

Having a standardized request package as part of the Common Governance Process provides

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opportunities to streamline, harmonize, increase efficiencies, and provide transparency and consistency for decision making.

3. Who Prepares and Submits the Request Package?

The investigator/requesting institution prepares the request package. The investigator may elect to prepare the request package themselves or choose to involve other members of their study team, such as the co-investigator(s). Norms at the requesting institution will ultimately determine who creates, reviews, and submits the request package.

4. How Is the Request Package Used?

The request package will be used in several ways. Submitting the request package begins the Intake stage, the first of three stages in the Common Governance Process. Submitting the Request Package creates a record for the study in the Common Governance Process wherein decisions about the request can be recorded, tracked, and made visible to the investigator, requesting institution, and dataset holders.

Upon receipt, the coordinating body will review the request package for completeness, ensuring it contains all required information with a sufficient level of detail. The purpose of reviewing for completeness is to assess whether the request package is ready for a dataset holder review, with the goal being that dataset holders do not have to go back to the investigator/requesting institution to ask for any additional information or clarification during their review.

Finally, the request package is what a dataset holder will review during the Screening stage to decide whether the proposed study and linkage are feasible. If determined to be feasible, the request will proceed to the Rule Harmonization stage. If governance rules can be harmonized and agreed on by the dataset holders and the investigator/requesting institution, the request will be approved.

Preparing to Submit a Request Package

In preparation for submitting a request package, the investigator/requesting institution is expected to have already designed the study, defined an approach and methods to link data, and received necessary approvals from their IRB and Privacy Board. This work is required ahead of the request package process because information from all three of these activities generates required parts of the request package.

1. Design the Study

Designing the study establishes the purpose, scope, and methodology for accessing and linking datasets. The request package assumes that the investigator has defined the research questions, hypotheses, and objectives, as well as specifying datasets that they desire to link (requested datasets), the linked dataset that will be created, analyses that will be conducted, and outcomes that will be assessed. The study design includes a justification for why the requested datasets are required for the research and defines the scope of the data for each requested dataset. As part of selecting requested datasets, the request package assumes that the investigator/requesting institution have conducted adequate discovery to understand the contents of the requested datasets, confirmed the availability of requested data elements, and familiarized themselves with each dataset's governance policies including permitted uses.

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2. Plan the Linkage Implementation

The request package requires that the investigator/requesting institution have designed a plan for how requested datasets will be linked (a linkage implementation plan), which includes what organization will match individuals, what linkage method will be used, what software(s) will perform the linkage work, who will generate the linked dataset, and how data will be disposed of. As linkage includes accessing and transmitting multiple requested datasets to a common location for matching, a linkage implementation will specify data flow, privacy, and security throughout the process.

3. Secure Approvals

Before submitting the request package, the proposed study should have already been reviewed for ethical and privacy concerns based on the direction of the requesting institution. The request package expects that IRB and Privacy Board approvals or exemptions have been received prior to initiating the Common Governance Process. Formal documentation of study approvals or exemption is required, ensuring that governance work does not start for requests that may pose unacceptable ethical, human subjects use, and/or privacy risks.

Request Package Steps

Once preparation work is finished, the investigator/requesting institution can begin completing a request package. For a request package to be complete, an investigator/requesting institution must: 1) initiate a request; 2) provide administrative and study documents (such as IRB and Privacy Board approval letters); 3) provide information on a variety of study, linkage, and governance topics into the request form; 4) respond to any governance questions specific to the datasets that are being requested; 5) complete required attestations; and 6) affirm the request package is ready for submission. Figure 1 illustrates the six request package steps that address these requirements. Each step is explained below.

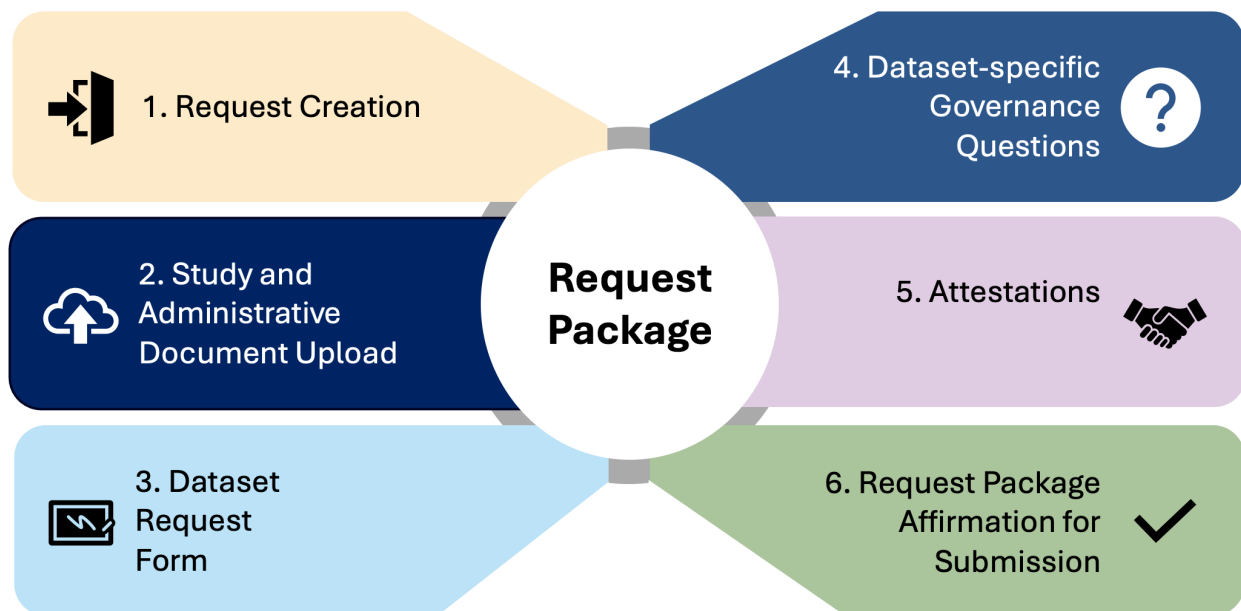


Figure 1: Request Package Steps

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Recognizing that every study is unique and every investigator/requesting institution may organize their work differently, the steps described below do not have a prescribed sequence.

1. Request Creation

The investigator/requesting institution initiates a request by creating a new request package that is specific to the study they are proposing; the newly created request package is affiliated with the investigator and the requesting institution. Creating a request involves providing the title of the request (which can be the same as the study title), the Investigator's name and contact information, and the name and contact information for the Requesting institution. This action is always the first step as none of the other steps can be completed until a request package is created.

2. Study and Administrative Documents

The investigator/requesting institution provides study and administrative documents for the request package. For every request package, required documents include study description/protocols, submission materials, and approvals from the IRB and Privacy Board review. Additional documents may include any number of supporting materials and documentation including but not limited to consent forms, a determination that the work does not involve human subjects, a waiver of consent requirement, letters of support from dataset holders or other study participating organizations, training certificates, grant and award materials, relevant publications, and technical specifications. Some additional documents may also reflect dataset-specific required documentation.

Dataset holders review IRB and Privacy Board approvals to ensure that the IRB and Privacy Board have sufficiently examined the ethics of the study and risk of privacy, and that necessary approvals are in place. Dataset holders may use additional documents provided to ensure that specific governance requirements have been addressed or to gain more context about the study, linkage, or participating organizations.

3. Dataset Request Form

The dataset request form collects information on a variety of topics including but not limited to the study team, IRB and Privacy Board of record, requested datasets, linkage implementation, and privacy and security from the investigator/requesting institution. Each of the topics included in this form is detailed [below](#). Dataset holders use form responses to understand how the investigator/requesting institution plans to access, share, manage, link, and use the requested dataset(s) and linked dataset in the proposed study. One of this form's most critical functions is to identify the requested datasets for linkage that generate the dataset-specific governance questions.

4. Dataset-Specific Governance Question

The dataset-specific governance questions are questions about governance tasks required by the requested datasets (identified in the dataset request form). Many dataset holders require the investigator/requesting institution to complete governance tasks prior to requesting access to a dataset. Thus, dataset holders will want to confirm that required governance tasks have been completed when commencing their review. For example, one dataset may require that an

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investigator establish an Open Researcher and Contributor ID²⁶ or ORCID prior to requesting dataset access.

Because these governance questions are specific to the requested datasets, the volume and contents of these questions will be request-specific and until the requested datasets have been entered in the dataset request form, no dataset-specific governance questions will be presented.

5. Attestations

The investigator/requesting institution attest to a set of governance-determined declarations. Attestations will affirm topics such as:

- Collaboration between the investigator and requesting institution on the study proposed in this request package
- Completion of all the requesting institution's required pre-submission activities
- Review of the governance requirements for each of the requested datasets
- The requesting institution's compliance with all applicable federal and state laws
- Assurance of a safe and secure linkage implementation that protects individual privacy and minimizes risk
- The accuracy and truthfulness of the request package

Attestations aim to affirm the collaboration between the investigator and requesting institution, verify the accuracy of information in the request package, and confirm that the investigator/requesting institution has done the expected preparatory activities.

6. Request Package Affirmation Submission

Before submission, the investigator/requesting institution affirm that the request package is complete and ready for submission. This activity occurs only when all other steps are completed and is the last step before submission. The purpose of this step is to ensure that the investigator/requesting institution approve of the request package that will be submitted.

Information Collected in the Dataset Request Form

Within a request package, a dataset request form collects information about the proposed study. Descriptions of each type of information gathered are included below.

Study Information

Study information includes the proposed study topic, aims and objectives, timing, and funding source as well as analytic methods, inclusion and exclusion criteria, anticipated limitations, use of artificial intelligence (AI) models, and plans for disseminating data and sharing findings from the study. Dataset holders will use study information to understand the rationale and intent of the research that the investigator/requesting institution aims to complete.

²⁶ Open Researcher and Contributor ID: <https://orcid.org/>

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Organization and Individual Information

Organization and individual information includes organizational names and affiliated individuals, contact information, and roles on the project. Members of the study team are named and identified and a primary point of contact for the study and institution are identified. Recognizing that dataset linkage can include third-party organizations, such entities external to the requesting institution but handling data must be included. Dataset holders will use organizational and individual information to understand the entities that are involved and handling data as well as individual affiliations.

IRB and Privacy Board Information

IRB and Privacy Board information includes the identity of the IRB and/or Privacy Board who evaluated the study and their contact information. Dataset holders will use IRB and Privacy Board information in concert with study and administrative documents to confirm that the study has been appropriately reviewed for ethics and privacy and that the necessary approvals have been granted.

Requested Datasets and Linkage Implementation

For each requested dataset, the dataset request form will include general data source information, specifications for the needed population, time period, and data elements needed for the study. The dataset request form will also include proposed methods for dataset access, sharing, storage, and disposition. For the linkage implementation, the dataset request form will collect linkage method and rationale, who will do the matching, and what outputs will be produced. Dataset holders will use this information to understand what data is being requested from their dataset, what other datasets their data will be linked to, and how linkage will occur. Dataset holders will use the linkage implementation information to assess the technical feasibility of the linkage and the likelihood that the proposed linkage will be successful.

Investigators may design a study where a dataset they have generated or already have from a previous study will be linked to other requested datasets. When this is the case, one of the requested datasets in the dataset request form is their own and their contribution of the dataset to the study is noted.

Linked Dataset Creation, Access, Use, and Disposition

Linked dataset information includes who will create the linked dataset, what variables (including identifiers) will be included in the linked dataset, who will have access to the linked dataset, how the linked dataset will be transmitted to the investigator/requesting institution, and how the linked dataset will be used and disposed of after completion of the study. If the investigator/requesting institution plans to disseminate the linked dataset further in its original or modified (e.g., de-identified) form, this information would be provided in lieu of the disposal information. Dataset holders will use this information to understand the contents of the linked dataset that will be analyzed in the study, assess its sensitivity and if the proposed management plan is in alignment with the governance rules for their dataset, and evaluate if proposed disposal or dissemination is acceptable.

Privacy and Security Information

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Privacy and security information collected describes how the investigator/requesting institution will preserve the privacy of the individuals whose data are in the requested datasets and linked dataset. It also describes security controls and protections that will be used throughout the data lifecycle at each organization handling the requested datasets or the linked dataset. Dataset holders will use this information to evaluate if the proposed methods align with their standard and policies regarding preserving privacy and ensuring security.

Additional Considerations

The investigator/requesting institution may consider the following points when creating and submitting a request package:

- The request package includes a large amount of varied information, making completing a request package a potentially time-intensive endeavor that likely requires input from multiple individuals from the requesting institution and inputting information over multiple sessions.
- The investigator/requesting institution should read and understand the entire request package at the outset to determine which individuals need to be involved, what additional internal review may be required prior to submission, who will complete which parts of the request package, and who will submit the request package.
- Administrative information about the study team and participating organizations should be gathered proactively. If not done systematically, collecting this type of information can take valuable time and delay submission.
- Thoroughly developing and completely documenting the methods for the proposed study and linkage may reduce the time required to complete the request package. Delays and inefficiencies may occur when the investigator/requesting institution encounters a question about the linkage or the study that they have not already considered and requires input and feedback from others. The investigator/requesting institution is encouraged to collaborate with linkage experts when designing the linkage implementation for the study and to consult with privacy and security experts to design the safest and most secure linkage options.